

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)

Present:

Mr. Justice Md. Moinul Islam Chowdhury

Civil Revision No. 1661 of 2014 with
Civil Revision No. 2363 of 2014

Md. Saiful Islam

----- Defendant-Respondent-Petitioner
[in the Civil Revision No.1661 of 2014]

Md. Saiful Islam

----- Plaintiff-Respondent-Petitioner
[in the Civil Revision No.2363 of 2014]

=Versus=

Md. Moklesur Rahman Bhuiyan

----- Plaintiff-Appellant-Opposite Party
[in the Civil Revision No.1661 of 2014]

Rokeya Begum and another

----- Defendants-Appellant-Opposite Party
[in the Civil Revision No.2363 of 2014]

Ms. Rubayet Hossain, Advocate

----- For the Petitioner
[in both the Civil Revision case]

Mr. Mojibur Rahman, Advocate

----- For the Opposite Party
[in both the Civil Revision case]

Heard on 13.07.2017, 16.07.2017 and
Judgment on 21.08.2017

These two Rules have arisen between the same parties regarding the same suit properties, as such, these two Rules are taken together for disposal by this common judgment.

In the Civil Revision No.1661 of 2014

At the instance of the Defendant-Respondent-Petitioner, Md. Saiful Islam, এই মর্মে অপরপক্ষের প্রতি কারণ দর্শানি পূর্বক রুল জারী করা হইল, কেন

টাঙ্গাইল বিজ্ঞ অতিরিক্ত জেলা জজ, প্রথম আদালত এর অন্য প্রকার ২১৬/২০১২ নং আপীল প্রচারিত ০৭/১১/২০১৩ তারিখের তর্কিত রায় এবং ডিক্রি রদ ও রহিত করা হইবে না, যে রায় ও ডিক্রি মূল টাঙ্গাইলের বিজ্ঞ যুগ্ম জেলা জজ, প্রথম আদালত এর অন্য ৫৩/২০১১ নং মোকাদ্দমায় প্রচারিত ১৫/১০/২০১২ তারিখের রায় এবং ডিক্রি পরিবর্তন পূর্বক আপীলটি মনজুর হইয়াছে।

The relevant facts for disposal of this Rule, inter alia, are that the present-opposite party as the plaintiff filed the Other Class Suit No.53 of 2011 in the court of the learned Joint District Judge, Court No.1, Tangail for a decree of permanent injunction restraining the defendant not to disturb or dispossess of the defendant-petitioner from the suit land. The plaint contains that the suit land appertaining to Dag No.426, S.A. Khatian No.57, Mouja Dhanki, Police Station- Delduar, District- Tangail measuring 53 decimals which was originally owned by four persons out of whom two persons sold to one Bandur Bhuiyan, who subsequently transferred the same measurement of land to his wife Rokeya Begum by the registered deed of gift No.3393 dated 30.10.1986. The said Rokeya Begum thereafter transferred 26 decimals by executing a deed on 20.07.2009 and which was registered on 06.10.2009 to the plaintiff-opposite party and the land was mutated by Mutation Case No.193(IX-I)-9-10 and accordingly paying Khajna to the government. On 26.11.2010 the defendant-petitioner threatened to dispossess him from the suit land, thus, he filed this suit for restraining the defendant.

On the other hand, the present defendant-petitioner contested the suit by filing a written statement contending, inter-alia, that the suit land situated in S.A. Dag No.426 at present Dag No.516, S.A. Khatian No.57,

land measuring 35 decimals was sold to the present defendant-petitioner on 25.08.2009 by a registered sale deed dated 01.09.1991 and handed over possession but the present-plaintiff created a fictitious deed dated 20.07.2009 which was shown to have been registered on 06.10.2009.

After hearing the parties, the learned Joint District Judge, Court No.1, Tangail dismissed the suit. Being aggrieved the present opposite party as the appellant preferred the Other Class Appeal No.216 of 2007 which was allowed by the learned Additional District Judge, Ist Court, Tangail. This revisional application has been filed challenging the legality of the said impugned judgment and decree and the present Rule was issued thereupon.

In the Civil Revision No.2363 of 2014

At the instance of the Plaintiff-Respondent-Petitioner, Md. Saiful Islam, এই মর্মে অপরপক্ষের প্রতি কারণ দর্শানো পূর্বক রুল জারী করা হইল, কেন টাঙ্গাইলের বিজ্ঞ অতিরিক্ত জেলা জজ, প্রথম আদালত এর অন্য প্রকার ২১৭/২০১২ নং আপীলে প্রচারিত ০৭/১১/২০১৩ তারিখের তর্কিত রায় এবং ডিক্রি রদ ও রহিত করা হইবে না, যে রায় ও ডিক্রি মূল টাঙ্গাইলের বিজ্ঞ যুগ্ম জেলা জজ, প্রথম আদালত এর অন্য ২৩/২০১১ নং মোকাদ্দমায় প্রচারিত ১৫/১০/২০১২ তারিখের রায় এবং ডিক্রি পরিবর্তন পূর্বক আপীলটি মনজুর হইয়াছে।

The relevant facts for disposal of this Rule, *inter alia*, are that the present-petitioner as the plaintiff filed the Other Class Suit No.23 of 2011 for declaration that the deed dated 20.07.2009 was made ante dated which is not binding upon the plaintiff and also claimed a declaration of title upon the suit land measuring 35 decimals as mentioned in schedule- 'Ka' of the plaint. The plaint contains that the suit land situated in S.A.

Khatian No.57, Dag No.426 and present Dag No.516 in S.A. Khatian No.57 measuring 35 decimals out of 1.12 acres. The suit land was originally owned by Rokeya Begum who transferred 35 decimals to the plaintiff on 25.08.2009 by a registered deed No.1991 and handed over possession therefore the present-plaintiff-opposite party has been in possession upon the suit land but the present-opposite party created a deed to have been executed on 20.07.2009 of total land measuring 57 decimals including the above mentioned 35 decimals and the said deed was registered on 06.10.2009.

The present opposite party as the defendant contested the suit by filing the written statement contending, inter-alia, that the suit land appertaining to S.A. Khatian No.67, S.A. Dag No.426 was originally owned by Abdur Razzak, Tofayel Hossain, Amjad Hossain, Mohammad Hossain. Amjad and Mohammad exchanged their portion of land with Bandur Bhuiyan by the deed of exchange dated 07.09.1997. In turn the said Bhuiyan transferred 35 decimals to his wife Rokeya Begum by registered deed of gift. The said Rokeya Begum transferred 26 decimals by executing a deed on 20.08.2009 and registering the same on 06.10.2009 in favour of the present-opposite party No.2, Md. Moklesur Rahman Bhuiyan the land was mutated in his name and the Khajna has been paid to the government.

After hearing the parties, the learned Joint District Judge, Court No.1, Tangail decreed the suit. Being aggrieved the present-opposite parties as the appellants preferred the Other Class Appeal No.217 of

2011 in the court of learned District Judge, Tangail which was heard by the learned Additional District Judge, Court No.1, Tangail on transferred on 06.11.2013 allowing the appeal and thereby setting aside the judgment and decree of the trial court. This revisional application has been filed under Section 115(1) of the Code of Civil Procedure challenging the legality of the judgment and decreed and the Rule was issued thereupon.

From the above given factual aspects, it appears that both the Rules were issued by this Court upon two different impugned judgment and decree which arose from the common factual aspects.

In the Civil Revision No.1661 of 2014, Ms. Rubayet Hossaian, the learned Advocate appearing for the petitioner submits that the learned court of appeal below committed a gross error of law occasioning failure of justice in not holding that the title of the land was not transferred to the plaintiff-opposite party entitling him to the relief prayed in the suit.

In the Civil Revision No.2363 of 2014, Ms. Rubayet Hossaian, the learned Advocate appearing for the petitioner submits that the learned court of appeal below on a misconception of law held that title deed of the defendant-opposite party was of earlier date i.e. on 20.07.2009 (date of execution) and registered on 06.10.2009 and thus committed an error of law occasioning failure of justice.

She further submits that the land having been transferred and the registration completed on 25.08.2009 the subsequent registration showing an earlier date as the date of execution of the document should

not be accepted in finding title of the land in favour of the defendant-opposite party.

The Rules have been opposed by the present-opposite party.

Mr. Md. Majibur Rahman, the learned Advocate appearing for the opposite party in both the Rules submits that Rokeya Begum of the owner of the suit land measuring 26 decimals by a transfer made by her husband Bandhu Bhuiyan through a deed of gift dated 30.10.1986 and Rokeya Begum was also became the owner of the suit land measuring 30 decimals in Kachua village by a transfer made by one Shamsul Alam Sarker from Plot Nos.277 and 290 of Mouja Kachua, as such, Rokeya Begum became the owner of 56 decimals out of which she transferred 35 decimals by executing a deed on 20.07.2009 which was registered on 06.10.2009 in favour of the defendant-opposite party No.2 in the Civil Revision No.2363 of 2014 and the present opposite party No.1 in Civil Revision No.1661 of 2014, therefore, the plaintiff could prove its case but the learned trial court committed an error of law against the present-opposite party in both the suits land but the learned appellate court came to a lawful conclusion after considering the evidence, as such, both the Rules are liable to be discharged.

He also submits that the present-opposite party in both the Rules could prove that the execution of a deed on 20.07.2009 by Rokeya Begum in favour of Md. Moklesur Rahman Bhuiyan and the same was registered on 06.10.2009 therefore, the provision of Sections 47 and 60 of the Registration Act are in favour of the present-opposite party, as

such, the learned appellate court committed no error of law and interference from this Court is called for.

He also submits that pursuant to the execution of a deed dated 20.07.2009 there was no land owned by the vendor Rokeya Begum on 25.08.2009 to transfer to the present-petitioner thus, the appellate court properly considered the deposition of Rokeya Begum as D.W.1 who deposed that she only entered into a contract regarding the land of 1½ decimals in favour of the present-petitioner by executing a deed on 25.08.2009, therefore, even if, a registered deed was allowed for the sake of argument it only refers to 1½ decimals of land but by practicing fraud the present-petitioner inserted 35 decimals in place of 1½ decimals of land, thus, the Rule is liable to be discharged.

Considering the above submissions made by the learned Advocates of both sides and also considering the revisional application filed by the present-petitioner in both the Rules under Section 115(1) of the Code of Civil Procedure along with Annexures therein, in particular, the impugned judgment passed by the appellate court and also considering the lower court records, it appears to me that the plaintiff-opposite party filed a suit for permanent injunction for restraining the present-petitioner from dispossessing him. It further appears that the plaintiff-petitioner filed another suit for declaration that a deed of gift on 20.07.2009 executed by Rokeya Begum in favour of the present-opposite party No.2, Md. Moklesur Rahman Bhuiyan, on 20.07.2009 as illegal

and not binding and also claiming upon 35 decimals situated in area mentioned above.

From the above given factual aspects of the present-opposite party in both the Rules and the present-petitioner are same and their disputes arose from transfer of a piece of land measuring 35 decimals by executing a deed on 20.07.2009 in favour of Md. Moklesur Rahman Bhuiyan and the registration was not completed until the date of 06.10.2009 whereas, the present-petitioner claimed that Rokeya Begum executed and registered a deed of gift on 25.08.2009 in favour of the present-petitioner in both the Rules namely; Md. Saiful Islam.

In the above situation the vital question before this Court is that when and how the land measuring 35 decimals was transferred and to whom. There are some confusion as to the transfer of the suit land because the present-petitioner claimed that Rokeya Begum transferred 35 decimals by executing and registering a deed on 25.08.2009, whereas, Rokeya Begum herself deposed as the witness in both the Rules stating that she never intended to sale 35 decimals but she only signed a document in order to transfer the land measuring 1½ decimal. She also deposed that 35 decimals had been inserted by practicing fraud by the present-petitioner in order to deceive her and take away the right and title upon the said 35 decimals.

On the other hand, the present-opposite party (i.e.) Rokeya Begum and Md. Moklesur Rahman Bhuiyan could Exhibited document dated 20.07.2009 which was executed by Rokeya Begum in favour of Md.

Moklesur Rahman Bhuiyan but it was not registered. In this regard, this Court has to take a decision as to the fact whether the execution of a deed is sufficient for transferring a land under the Registration Act. In this regard, I have examined the document and the terms and conditions containing in the said deed for an intention for transfer of the suit land in favour of Md. Moklesur Rahman Bhuiyan. In such situation, law of contract, law of the transfer of the property and also the Registration Act are relevant. In particular, Section 47 of the Registration Act provides the time from which a register document operates. For convenience, Section 47 of the Registration Act is placed below:

“47. Time from which registered document operates-A registered document shall operate from the time from which it would have commenced to operate if no registration thereof had been required or made, and not from the time of its registration.”

In order to interpret the above position of the law, Our Apex Court given a wider explanation in the case of Md. Rafiqul Islam Vs. Mir Abdul Ali reported in 12 BLD(AD)(1992), 177, which reads as follows:

“12. We have no manner of doubt whatsoever that an apparent error has crept in the judgment while applying Section 47 of the Registration Act in the facts and circumstances of the case. When the same vendor executes and registers two sale deeds in respect of the same suit land in favour of two different purchasers on two different dates, Section 47 of the Registration Act settles which one will prevail over the other. The sale deed which was executed

earlier but registered later in point of time will prevail over the sale deed executed later but registered earlier in point of time and the criterion in such cases for the purpose of determining when the sale takes effect is not the date of registration but the date of execution of the sale deed itself. This Court has committed an apparent error in relating back the defendant's sale deed to the date of his bainaparra dated 30.12.72. A sale deed which is registered will relate back to its own date of execution, not of any prior bainapatra. The plaintiff's sale deed was executed and registered on 8.7.74 and the defendant's sale deed was registered on 11.7.75. On a patent application of the principle of Section 47 the plaintiff's sale deed will clearly prevail over the defendant's, if the plaintiff's sale deed otherwise qualifies for comparison under Section 47. There can be no liberal or extended application of Section 47. Any such interpretation is fraught with grave consequences."

From the above principle of law, regarding the time when a registered document starts to operate. In the instant case, the vendor Rokeya Begum executed a sale deed in favour of Md. Moklesur Rahman Bhuiyan on 20.07.2009 but the same sale deed was registered on 06.10.2009. The question is whether after execution of a sale deed the purchaser Md. Moklesur Rahman Bhuiyan got any entitlement and right upon the suit land measuring 35 decimals even though, the registered sale deed was presented for registration on 06.07.2009. In view of the above given fact and the principle laid down by our Apex Court mentioned above, I am of the opinion that the present-opposite party No.2 in the Civil Revision No.2363 of 2014 and the Civil Revision

No.1661 of 2014 has got entitlement and right as the right and title had been transferred from Rokeya Begum to Md. Moklesur Rahman Bhuiyan therefore there was no land measuring 35 decimals by Rokeya Begum to transfer in favour of the present-petitioner Md. Saiful Islam on 25.08.2009.

Accordingly, I am of the view that the learned appellate court committed no error of law by passing the impugned judgment and decree in both the Rules. I have examined the impugned judgment and decree passed by the learned court below. In the Civil Revision No.1661 of 2014 the plaintiff Md. Moklesur Rahman Bhuiyan has filed the Title Suit No.53 of 2011 for permanent injunction which was dismissed by the learned trial court on the basis of non-consideration and misreading of some vital evidence however, the learned appellate court came to a lawful conclusion to allow the appeal by setting aside the judgment and decree of the learned trial court, as such, the permanent injunction needs to be granted restraining the present-petitioner from disturbing the peaceful possession of the suit land.

In the Civil Revision No.2363 of 2014 the present-petitioner filed the title suit but the learned trial court on non consideration and misreading of the record came to a wrongful conclusion to decree the suit on the basis of the following findings:

“পক্ষান্তরে বাদীপক্ষে দাখিল ২৫/০৮/০৯ খ্রিঃ তারিখে সম্পাদিত ও রেজিস্ট্রিকৃত ১৯৯১ নং দলিল, উক্ত দলিলের লেখক, সাক্ষী, সনাক্তকারী ও পার্শ্ববর্তী জমির মালিকের সাক্ষ্য হইতে প্রমান হয় যে, রোকেয়া খাতুন সাইফুল ইসলাম বরাবর নালিশী দাখিল ৩৫ শতক ভূমি বিএনয় করিয়া উক্ত ভূমি বাবদ স্বেচ্ছায় দলিল

সম্পাদন ও রেজিস্ট্রি করিয়া দিয়াছেন। সাইফুল ইসলাম বরাবর দলিল সম্পাদন ও রেজিস্ট্রি করিয়া দেওয়ার পর রোক্রিয়া খাতুন মোখলিছুর রহমানের সহিত যোগসাজস করিয়া কচুয়া মৌজার Fictitious ভূমি উল্লিখ করিয়া ২০/০৭/০৯ খ্রিঃ তারিখ সম্পাদন দেখাইয়া মোখলিছুর রহমান নামীয় ০৫/১০/০৯ খ্রিঃ তারিখ রেজিস্ট্রিকৃত ৭২২৩ নং দলিল সৃষ্টি বরিয়াছেন। উক্তরূপ দলিলের ফলে নালিশী ভূমি বাদীর স্বত্ব কালিমা লিগু হইয়াছে।”

However, the learned appellate court came to a lawful conclusion to allow the appeal by setting aside the judgment and decree passed by the learned trial court on the basis of the lawful conclusion as follows:

“তিনি এই ভাবে উক্ত ২টি খতিয়ান স্বত্বান দখলকার থাকাবস্থায় ২০/০৭/০৯ তারিখে সম্পাদিত দলিল মূল ধানকি মহিড়া মৌজার ৩৫ শতক ভূমি হতে ২৬ শতক এবং কচুয়া মৌজার ৩০ শতক একুনি ৫৬ শতক ভূমি বাবদ ২ নং বিবাদী বরাবর দলিল সম্পাদন করা দেন। পরবর্তীতে ঐ ভূমি বাবদ ০৬/১০/০৯ তারিখে ৭২২৩ নং দলিল নিবন্ধন করা নেন। যদিও ১ নং বিবাদী কর্তৃক বাদী বরাবর ২৫/০৮/০৯ তারিখে সম্পাদিত ও রেজিস্ট্রিকৃত দলিল মূল ৩৫ শতক ভূমি হস্তান্তর করা হইয়াছে। সেহিহে পূর্ব হি অর্থাৎ ২০/৭/০৯ তারিখে ২নং বিবাদী বরাবর দলিল সম্পাদন করা দেওয়ার উক্ত দলিল ৬/১০/০৯ তারিখে নিবন্ধন হইলও দলিলটি ২০/৭/০৯ তারিখে অর্থাৎ সম্পাদনের তারিখ থেকে কার্যকরী হইবে।”

In view of the above discussions and the findings of the learned appellate courts, I consider that the learned trial court in both the suits came to a wrongful conclusion by passing the impugned judgments and decrees but the learned appellate court in both the appeals came to a lawful conclusion in the appeals after considering the evidence and the relevant and thereby committed no error of law. I am therefore not inclined to interfere into the impugned judgments and decrees passed by the appellate court in both the appeals.

Accordingly, I do not find merit in Civil Revision No.1661 of 2014 and Civil Revision No.2363 of 2014.

In the result, both the Rules are discharged.

The ad-interim order of stay granted in both the Rules at the time of issuance of these Rules upon the operation of the impugned judgments and decrees are hereby recalled and vacated.

The office is directed to communicate this judgment and order to the concerned court immediately and the office is also directed to send down the lower courts record at once.